

Present
Mr. Justice Sheikh Abdul Awal
Criminal Appeal No. 4757 of 2014

Md. Dulal Hossain
.....Convict-appellant.

-Versus-
The State and another.
.....Respondents.

Mr. Zaman Akter, Advocate
.....For the appellant.

None appears.
.... For the Respondent No.2.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G
.... For the Sate.

Heard and Judgment on 18.01.2024

Sheikh Abdul Awal, J:

This Appeal at the instance of convict appellant, Md. Dulal Hossain is directed against the judgment and order of conviction and sentence dated 20.05.2014 passed by the learned Additional Sessions Judge, 2nd Court, Kushtia in Sessions Case No. 23 of 2014 arising out of C.R. Case No. 381 of 2011 convicting the appellant under section 138 of the Negotiable Instrument Act, 1881 and sentencing him thereunder to suffer

imprisonment for a period of 1 (one) year and to pay a fine of Tk. 1,50,000/- (one lakhs fifty thousand).

Mr. Zaman Akter, the learned Advocate appearing for the convict-appellant after placing supplementary affidavit dated 18.01.2024 submitted that at the time of preferring this criminal appeal the convict appellant has been deposited entire cheque's amount before the trial Court and during pendency of the appeal the complainant sworn an affidavit before the notary public stating that as per affidavit if the appeal is allowed the complainant-Respondent No.2 has no objection and he should have withdrawn the money amounting to Taka 50,000/- (fifty thousand) deposited by the convict-appellant at the time of preferring this appeal.

The learned Advocate for appellant further submitted that since the complainant-respondent No.2 has already been made compromise over the dispute, the appeal may kindly be allowed upon recording compromise, offence under Section 138 of the Act may be compounded and the conviction of the appellant is liable to be set-aside.

Having heard the learned Advocate for the appellant and perused the supplementary affidavit dated 18.01.2024 together with the affidavit sworn by the complainant-respondent No.2 (Annexure-B).

Having regard to the submission made by the learned Advocate for the appellant, I am of the view that there is no reason not to accept the compromise entered into between the parties. The Negotiable Instruments Act, 1881 is silent about compromise of offences under the Act, but the Act does not make any provision therein prohibiting such compromise. Since N.I. Act proceeding arises out of monetary transaction and the proceeding is a quasi civil and quasi criminal in nature, maximum sentence under the law is one year, I am of the view that the dispute between the parties under Negotiable Instruments Act proceeding has been resolved out of Court by the parties on compromise and the same should be allowed by the Court at any stage of the proceeding even at the appellate or revisional stage.

In the Supreme Court of India, it has been consistently decided that the offence under Section 138 of the Negotiable Instruments Act being compoundable.

For the reasons stated above, I allow the prayer made on behalf of the contesting parties with the direction that compromise done by the parties is hereby accepted and dispose of the appeal on the basis of the said compromise.

Accordingly, the appeal is allowed by holding that since the matter has been compromised between the

parties and the amount in terms of the said compromise has been deposited, the appellant is entitled to acquittal.

The order of conviction and sentence passed by the trial Court below is set-aside and the appellant is acquitted of the charge under Section 138 of the Act. Convict appellant, Md. Dulal Hossain is discharged from his bail bond and the trial Court is directed to allow the complainant-Respondent No.2 to withdraw the cheque's amount deposited in the Trial Court by the convict-appellant for the purpose of preferring this Criminal Appeal.

The appeal stands disposed of in the above terms.

Send down the lower Court records at once.